

25STCV29968B 25STCV29968B

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C07%2F30%2F2026

Source SHA-256: 668a8e21839854df072f9a930ade84b16a4e800448badca2c277147c3a903a7c

Case Number: 25STCV29968B Hearing Date: July 30, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 30, 2026

CASE NUMBER

25STCV29968B

MOTION

Demurrer to Complaint

MOVING PARTIES

Defendants SoCal Hospitalists and Babak Gachpaz, M.D.

OPPOSING PARTY

Plaintiff Fazeel Shah, D.O.

MOTION

Plaintiff Fazeel Shah, D.O. ("Plaintiff") brought the instant action against Defendants SoCal Hospitalists ("SoCal Hospitalists") and Baback Gachpaz, M.D. ("Dr. Gachpaz," collectively, "Defendants") and others, alleging he was wrongfully terminated from his employment. Defendants demur to Plaintiff's complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

First and Fourth Causes of Action: Violation of Fair Employment and Housing Act (FEHA)

These causes of action are asserted against SoCal Hospitalists.

"The fundamental foundation for liability under FEHA is the existence of an employment relationship between the parties, even if indirect." (McCoy v. Pacific Maritime Association (2013) 216 Cal.App.4th 283, 301, internal quotations omitted; see also Gov. Code, § 12940 [prohibits employers from engaging in unlawful employment practices].)

In this regard, Plaintiff alleges he worked at St. Mary's Medical Center, and he had a formal contract at first with Defendant ProHealth Partners and later with Defendant SoCal Hospitalists, which was a new program created by Dr. Gachpaz. (See Complaint, ¶ 12.) After formally complaining about a pattern of misconduct by Dr. Gachpaz, Plaintiff alleges SoCal Hospitalists fired him without providing any concrete reasons. (Id., ¶ 12(h).) Thus, Plaintiff has alleged an employment relationship existed between him and SoCal Hospitalists, and SoCal Hospitalists engaged in conduct violative of FEHA.

The California Supreme Court has criticized generalized allegations such as these as "egregious examples of generic boilerplate" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 134, fn. 12.) However, "such allegations may be necessary, especially at the outset of a lawsuit, before discovery." (Barsegian v. Kessler & Kessler (2013) 215 Cal.App.4th 446, 451, internal quotations and citations omitted.) Thus, although the allegations in Plaintiff's complaint are lean at this point, the Court concludes in this instance they are sufficient to thwart the challenge at the demurrer stage, as Defendants may obtain further information about Plaintiff's claims through robust discovery. (See, e.g., Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135 [demurrers based on uncertainty are strictly construed "because ambiguities can reasonably be clarified under modern rules of discovery"].)

For purposes of this demurrer, in his first cause of action for retaliation and fourth cause of action for wrongful termination under FEHA, the Court concludes Plaintiff has sufficiently pleaded the claims, and the demurrer is overruled as to them.

Second Cause of Action: Whistleblower Retaliation Under the California Labor Code

Likewise, Plaintiff's second cause of action against SoCal Hospitalists under Labor Code section 1102.5 will pass muster. By its terms, Labor Code section 1102.5 provides for an action against an employer who retaliates against an employee for disclosing information.

Accordingly, the demurrer as to this cause of action is overruled.

Third Cause of Action: Violation of Health and Safety Code Section 1278.5

Health and Safety Code section 1278.5 prohibits a healthcare facility from discrimination or retaliation against an employee because the employee presented a grievance or complaint or initiated or cooperated in an investigation or proceeding of a governmental entity, relating to the care, services, or conditions of the facility. As discussed above, Plaintiff does allege SoCal Hospitalists employed him and engaged in discriminatory and retaliatory conduct against him.

Therefore, the demurrer is overruled as to this cause of action.

Fifth Cause of Action: Wrongful Termination in Violation of Public Policy

California law provides “a tort remedy when an employer's discharge of an employee contravenes the dictates of public policy.” (Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167, 177.) As set forth above, Plaintiff alleges SoCal Hospitalists employed him, and he was wrongfully discharged after having asserted his rights as an employee.

Accordingly, Plaintiff's allegations are sufficient, and the demurrer as to this claim is overruled.

Sixth Cause of Action: Intentional Interference With Prospective Economic Advantage

This cause of action is asserted against Dr. Gachpaz. To prevail on a cause of action for intentional interference with prospective economic relations, Plaintiff must show an economic relationship exists between Plaintiff and a third party with the probability of future economic benefit to Plaintiff, Gachpaz's knowledge of the relationship, Gachpaz's intentional acts to disrupt the relationship which result in actual disruption of the relationship, and resulting harm to Plaintiff. (Salma v. Capon (2008) 161 Cal.App.4th 1275, 1290.)

In this regard, Plaintiff alleges Gachpaz interfered with Plaintiff's existing economic relationship with St. Mary Medical Center. (Complaint, ¶ 83.) Although, Plaintiff alleges he worked at St. Mary Medical Center (see Complaint, ¶ 12(a)), he has not established an economic relationship existed between him and that facility per se. Moreover, the “prospective economic advantage” to which Plaintiff refers appears to be no more than a continuation of his work at St. Mary Medical Center. The Court notes although Plaintiff does state “[a]n economic relationship existed between Plaintiff and St. Mary Medical Center” (Complaint, ¶ 83), he alleges the disruption of his “employment relationship” occurred when “he was systematically excluded from rehire with SoCal Hospitalists” (id., ¶ 87), an entity which he has alleged is directly tied to Dr. Gachpaz. Thus, it is unclear what prospective economic advantage has been interfered with and by whom.

The Court sustains the demurrer to this cause of action but will afford Plaintiff an opportunity to amend it.

Seventh Cause of Action: Intentional Infliction of Emotional Distress

This claim is also asserted against Dr. Gachpaz.

“The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001, internal quotations and citations omitted.)

In the instant case, Plaintiff alleges Dr. Gachpaz failed to retain Plaintiff in his position. (Complaint, ¶ 12(h).) “A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even

if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination." (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) In any event, Plaintiff has not specifically and sufficiently pleaded any extreme and outrageous conduct by Dr. Gachpaz, as required.

Accordingly, Plaintiff must amend this cause of action.

CONCLUSION AND ORDER

Defendants' demurrer to Plaintiff's complaint is sustained with leave to amend as to the sixth and seventh causes of action. The demurer to all other causes of action is overruled. Plaintiff is to file an amended complaint within 20 days.

Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.